

HOUSE BILL 1421

By Moody

AN ACT to establish requirements for litter abatement and control
in Tipton County.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. As used in this Act, unless the context otherwise requires:

(1) "Garbage" means putrescible animal and vegetable wastes resulting from the handling, preparation, cooking, and consumption of food;

(2) "Litter" means refuse that is not contained or disposed of in accordance with the provisions of this Act.

(3) "Refuse" means all putrescible and non-putrescible solid waste except bodily waste, and includes, but is not limited to, garbage, rubbish, ashes, street cleanings, dead animals, abandoned automobiles, and market and industrial wastes; and

SECTION 2. It is unlawful for any person to place, leave, dump, or permit to accumulate any refuse in any building or on any property, so that same shall or may afford food or harborage for rodents, create a health hazard, or cause a public nuisance.

SECTION 3. All household refuse putouts shall be made in closed containers and secured in such a way as to prevent the contents from escaping therefrom and circulating freely in the environment; wet garbage shall be drained and placed in waterproof containers (e.g., plastic garbage bags). Toxic or hazardous substances are prohibited from being placed in these containers.

SECTION 4. All commercial and industrial establishments shall dispose of refuse in dumpsters designated for their use in such a way that said dumpsters shall not overflow and the refuse so deposited shall not circulate freely in the environment. Cardboard and wooden boxes shall be compacted prior to disposal.

SECTION 5. The maintenance of a litter-free environment at all construction and demolition sites shall be the responsibility of the owners, contractors, and subcontractors thereof. All refuse shall be removed from the site frequently enough to preclude a litter problem.

SECTION 6. All loading and unloading docks shall be maintained in such a manner as to prevent refuse from accumulating and from circulating freely in the environment. The responsibility for such maintenance shall devolve upon the owners and lessees thereof.

SECTION 7. All owners of private dwellings, or their lessees, shall be responsible for seeing to the maintenance of a litter-free environment in the areas immediately surrounding said dwellings up to the adjacent public street or road. Obnoxious growth shall be removed.

SECTION 8. All vacant lots within the county municipalities shall be kept clean and free of litter by the owners or lessees thereof. Obnoxious growth shall be removed.

SECTION 9. The county landfill shall be the sole ultimate repository of all refuse. All other dumpsites, other than provisional municipal dumpsites, are accordingly prohibited. Such provisions shall not prohibit persons from disposing of their own solid waste upon their own lands provided such disposal does not create a public nuisance, health hazard, or unsightly condition.

SECTION 10. With respect to publicly maintained dumpsters, there shall be no burning of refuse and no scavenging. Refuse shall not be deposited outside the dumpsters. If a dumpster is full, the refuse will be taken to another dumpster that is not full. Large, heavy items as well as hazardous materials and large pieces of wood are prohibited from being placed in or in the vicinity of a dumpster.

SECTION 11. Political and commercial posters or other advertisements shall not be placed upon public property or right-of-way, including utility and telephone poles. Handbills and like advertisements shall be distributed in such a manner as to prevent their circulating freely in the environment. These items will not be placed on the outside of vehicles, homes, or businesses where they would create a litter hazard.

SECTION 12. All organizers of outdoor events are responsible for the rapid removal of all refuse and litter from the site thereof and shall provide appropriate refuse containers for the public's use.

SECTION 13. All county residents with special disposal problems shall be responsible for seeking the advice of the Tipton County Public Works Director or responsible municipal Public Works Director.

SECTION 14. All nonfunctioning vehicles on the public thoroughfare or other public area shall be removed at the owner's expense within a period not to exceed three (3) days.

SECTION 15. All parking lots shall be maintained by the owners or lessees thereof in a clean, litter-free manner.

SECTION 16. Contents within, or on, commercial and private vehicles shall be secured to prevent loss of material upon public roads, rights-of-way, or other public or private property.

SECTION 17. All persons shall ensure that any refuse within their control be disposed of in proper containers or places. This will include such items as food and drink containers, tobacco items, and other personal use items that could be considered litter.

SECTION 18. It shall be unlawful for any person, firm or corporation to dump refuse in any form into any stream, ditch, storm sewer, sanitary sewer, or other drain within the County of Tipton. This does not preclude properly prepared putrescible wastes from domestic "garbage grinders" discharging into sanitary sewers.

SECTION 19. No person shall throw or deposit litter in or upon any premises, streets, sidewalks, or other public place within the County of Tipton, except in public receptacles or in authorized private receptacles for collection or in the Tipton County landfill.

SECTION 20. If an object of litter is discovered on another person's property without such person's permission, on any public highway, street or road, upon public parks or recreation areas, or upon any other public property except that property designated for that use, bearing a person's name, it shall be prima facie evidence that the person whose name appears on the object threw, dumped, or deposited it there.

SECTION 21. The owner, tenant, or person in control of the premises will carry out the orders of applicable law enforcement agencies or the Board of Health pertaining to this Act at such owner's, tenant's, or person's expense, or the County of Tipton may carry out such clean-up or other necessary activities and charge the expense of same to the owner or lessee.

SECTION 22. A person who violates a provision of this Act shall be fined not less than twenty-five dollars (\$25.00) nor more than fifty dollars (\$50.00) for each day the violation exists until its remediation.

SECTION 23. This act shall have no effect unless it is approved by a two-thirds (2/3) vote of the legislative body of Tipton County. Its approval or nonapproval shall be proclaimed by the presiding officer of the legislative body and certified to the secretary of state.

SECTION 24. For the purpose of approving or rejecting the provisions of this act, it shall be effective upon becoming a law, the public welfare requiring it. For all other purposes, it shall become effective as provided in Section 23.